

**IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)**

Case No.: _____

In the matter between:

WILBUR WILLIAM MATTHEE

APPLICANT

and

THE DEPARTMENT OF EMPLOYMENT AND LABOUR

RESPONDENT

NOTICE OF MOTION

(Application for Mandamus)

TAKE NOTICE that application will be made on behalf of the Applicant to the above Honourable Court on a date and time to be determined by the Registrar, for an order in the following terms:

PRAYERS

1. Mandatory Order — Correction of UI-19 Form:

An order directing the Respondent, the Department of Employment and Labour ("DEL"), to issue a Compliance Order within 5 days of the granting of this Order, compelling the Employer to correct the UI-19 Declaration Form (Annexure "UI-19") by substituting the current Code 6 ("Resigned") with the appropriate statutory code accurately reflecting the true nature of the Applicant's exit, namely constructive dismissal.

2. Mandatory Order — Remittance of UIF Levies:

An order directing the Respondent to conduct an immediate audit of all Unemployment Insurance Fund contributions relating to the Applicant for the month of June 2025, and thereafter to issue a directive compelling the Employer to remit all withheld levies to the Unemployment Insurance Fund, with written proof of compliance furnished to both the Department and the Applicant within 5 days of the audit's conclusion.

3. Mandatory Order — Corrected Certificate of Service:

An order directing the Respondent to enforce its mandate under section 42 of the Basic Conditions of Employment Act 75 of 1997, by compelling the Employer to issue to the Applicant a corrected Certificate of Service that accurately reflects the Applicant's professional title, role, and employment particulars.

4. Costs:

An order that the Respondent pay the costs of this application on the scale as between attorney and client, in view of its gross negligence, bad faith, and deliberate abdication of its statutory enforcement mandate.

5. Further and/or Alternative Relief:

Such further and/or alternative relief as this Honourable Court may deem just and equitable.

TAKE FURTHER NOTICE that the Applicant intends to rely upon the accompanying Founding Affidavit and the documents attached thereto.

TAKE FURTHER NOTICE that the Respondent is required to notify the Applicant, in writing, within 3 days of service of this Notice of Motion, whether the Respondent intends to oppose this application.

TAKE FURTHER NOTICE that if the Respondent intends to oppose this application, the Respondent must deliver an Answering Affidavit within 5 days of delivering its notice of intention to oppose.

FOUNDING AFFIDAVIT

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby state under oath as follows:

A. INTRODUCTION AND LOCUS STANDI

1. I am an adult person identity number 890903 5151 087 residing at 15 Bellevue Street, Voorbrug, Cape Town, 7001 . I am the Applicant in these proceedings. The facts stated herein are within my personal knowledge and are true and correct, unless the context indicates otherwise.

2. The Respondent is the Department of Employment and Labour, a national government department established in terms of section 197 of the Constitution of the Republic of South

Africa, 1996, read with the Public Service Act 103 of 1994, with its principal place of business at Laboria House, 215 Schoeman Street, Pretoria, and a regional office situated at 4th – 6th Floors, 9 Long Street, Cape Town, 8000

3. This Honourable Court has jurisdiction to hear this matter by virtue of sections 6 and 8 of the Promotion of Administrative Justice Act 3 of 2000 ("PAJA"), section 172(1) of the Constitution, and Rule 53 of the Uniform Rules of Court, read with the inherent jurisdiction of this Court to review unlawful administrative action and to grant mandamus where a public official has failed or refused to perform a mandatory statutory duty.

B. STATUTORY AND CONSTITUTIONAL FRAMEWORK

4.. Constitutional Right to Social Security: Section 27(1)(c) of the Constitution guarantees every person the right to have access to social security. The State is constitutionally obliged to take reasonable legislative and other measures, within its available resources, to achieve the progressive realisation of this right. The Respondent's conduct in this matter has rendered this guarantee illusory.

5.. The Unemployment Insurance Act 63 of 2001 ("UIA"): The UIA imposes a strict and non-discretionary statutory duty on every employer to deduct unemployment insurance contributions from employees' remuneration and to remit such contributions to the Unemployment Insurance Fund ("UIF" or "the Fund"). The DEL bears the corresponding mandatory enforcement duty to investigate and rectify any failure of remittance.

6.. The Unemployment Insurance Contributions Act 4 of 2002 ("UICA"): The UICA provides the legislative framework for the collection and enforcement of UIF contributions. Non-remittance is a criminal offence, and the DEL has no discretion to decline to investigate a credible complaint of non-remittance.

7.. PAJA: The Respondent's decisions constitute "administrative action" as defined in section 1 of PAJA. Such action is reviewable under section 6(2) of PAJA, inter alia, on grounds of:

- (a) failure to apply the mind;
- (b) arbitrariness and irrationality;
- (c) material error of law; and
- (d) procedural unfairness.

C. FACTUAL BACKGROUND

8.. Employment and Resignation: I was employed by AfroCentric Health with the subsidiary Medscheme Holdings ("the Employer") as a care coordinator later corrected to Case Manager during a recorded naming convention meeting with Human Capital and the Operational Manager. On 12 December 2025, I delivered a formal "Notice of Resignation Due to Automatically Unfair Constructive Dismissal" to the Employer (Annexure "RES1"). This notice unambiguously recorded the nature of my exit as constructive dismissal, not voluntary resignation. This fact is confirmed by the CEO of the Employer in sworn affidavits filed in High Court Case No. 2026-086906.

9.. Withheld June 2025 UIF Contributions: UIF levies were deducted from my salary during June 2025. These funds were not remitted to the Fund. The government's own uFiling system

reflects "No Information" for June 2025 in respect of my UIF record (Annexure "UIF-GAP"). This constitutes a strict liability violation. The Respondent has a non-discretionary duty to investigate and enforce remittance regardless of the circumstances of my departure from employment.

10.. The UI-19 Misrepresentation: On or about 19 January 2026, the Employer submitted the official UI-19 Declaration Form to the Respondent (Annexure "UI-19"). In this form, the Employer recorded my termination date as 12 December 2025 and selected Reason for Termination Code 6 ("Resigned").

This declaration is materially false and constitutes a statutory misrepresentation for the following reasons:

- a. On 12 December 2025, I delivered a formal written "Notice of Resignation Due to Automatically Unfair Constructive Dismissal" to the Employer (Annexure "RES1"). This notice expressly recorded that my exit was not a voluntary resignation but was occasioned by the Employer's conduct rendering continued employment intolerable.
- b. The UI-19 form itself expressly recognises Code 7 – Constructive Dismissal as a legitimate and distinct reason for termination. The Employer therefore had the correct statutory option available but deliberately or negligently chose the inaccurate Code 6.
- c. The Employer submitted the UI-19 more than one month after receiving my notice, giving it ample opportunity to reflect the true nature of the termination.

This false declaration has directly prejudiced my right to access Unemployment Insurance Fund benefits and has been used by the Respondent as justification for refusing to process my claim properly. The Respondent has a mandatory statutory duty under the Unemployment Insurance Act 63 of 2001 and the Unemployment Insurance Contributions Act 4 of 2002 to ensure the accuracy of such declarations and to compel correction where they are materially incorrect.

10A. Respondent's Duty to Act

The Respondent, through its labour inspectors, is empowered and obliged to investigate complaints regarding inaccurate UI-19 declarations and to issue compliance orders where necessary. By failing to compel the Employer to correct the UI-19 from Code 6 to Code 7, the Respondent has unlawfully abdicated its enforcement responsibilities and has effectively allowed the Employer's misrepresentation to stand, in breach of my constitutional rights under sections 10, 27(1)© and 33 of the Constitution.

11.. The "Smoke and Mirrors" Tactic — Annexure EXIT4: On 19 January 2026, the Employer submitted payroll data relating to August 2025 as purported "proof" of compliance with UIF obligations. This was a calculated attempt to mislead both the Applicant and the Respondent by presenting irrelevant records to obscure the June 2025 gap. The Respondent failed to scrutinise this obvious misdirection.

12.. Certificate of Service — Annexure CERT1: The Certificate of Service issued by the Employer wilfully misrepresents my professional title and role. This constitutes a further breach of section 42 of the Basic Conditions of Employment Act 75 of 1997 ("BCEA").

D. THE RESPONDENT'S UNLAWFUL CONDUCT

13.. Summary Closure — The 15 April 2026 Directive (Annexure "GUN1"): On 15 April 2026 at 23:31, Principal Inspector Cebo Kutuka summarily closed the investigation file by email. This decision was unlawful, procedurally irrational, and constitutes a reviewable error on the following grounds:

- a.** Error of Law: The Inspector unlawfully conflated CCMA jurisdiction with the DEL's independent and non-discretionary statutory mandate to investigate unpaid UIF levies and to address statutory fraud on the UI-19 form. These are separate and concurrent jurisdictions. The existence of any labour dispute does not extinguish the DEL's enforcement obligations.
- b.** Failure to Apply the Mind: The file was closed without evaluating the extensive evidentiary bundles furnished over a period exceeding sixty (60) days. This constitutes an arbitrary and irrational exercise of purported administrative discretion.
- c.** Violation of Constitutional Right to Dignity: The Inspector's dismissive tone and deliberate misgendering of the Applicant (using the notation "s\he") demonstrate a failure to engage objectively and constitute a violation of section 10 of the Constitution.

14.. Systemic Failure — Escalations to DEL Leadership (Annexure "ESC1"): Following the unlawful closure, formal escalation emails were delivered to Chief Inspector David Esau and Ms. Fezeka Ngalo. Neither official responded. This deliberate silence, in the face of credible allegations of statutory fraud and non-remittance, constitutes an intentional abandonment of the Respondent's public enforcement mandate. By inaction, the Respondent has condoned the Employer's conduct and become complicit in the financial harm suffered by the Applicant.

E. GROUNDS OF REVIEW AND BASIS FOR MANDAMUS

15.. The conduct of the Respondent is reviewable on the following grounds under PAJA and the Constitution:

- a.** Material Error of Law (section 6(2)(d) of PAJA): The decision to decline jurisdiction conflated separate statutory mandates.
- b.** Procedurally Unfair (section 6(2)(c) of PAJA): No adequate notice was given; no proper investigation was conducted; and the Applicant was denied a meaningful opportunity to be heard.
- c.** Arbitrary and Irrational (section 6(2)(e)(vi) of PAJA): The summary closure without engagement with the evidence is objectively irrational.
- d.** Failure to Perform Mandatory Duty (basis for mandamus): Where a public official fails or refuses to perform a duty imposed by statute, this Court has the inherent power and constitutional mandate under section 172(1)(a) to declare such conduct unlawful and to grant appropriate relief compelling performance.
- e.** Constitutional Breach: The Respondent's conduct violates the Applicant's rights under sections 10 (dignity), 27(1)(c) (social security), and 33 (just administrative action) of the Constitution.

F. NO ADEQUATE ALTERNATIVE REMEDY

16.. The Applicant has exhausted all available internal remedies within the DEL, including formal escalations to senior management. No adequate alternative remedy exists. The CCMA does not have jurisdiction to compel the DEL to investigate UIF non-remittance or to enforce the UI-19 correction. The continued refusal by the Respondent to act causes ongoing and material harm to the Applicant's social security rights and financial wellbeing.

G. INDEX OF ANNEXURES

Annexure	Document Name	Key Fact to be Noted by the Court
RES1	Formal Notice of Resignation	Proves employer was formally notified of "Constructive Dismissal" (12 December 2025)
UI-19	UIF Declaration Form	Shows statutory misrepresentation: "Resigned" Code 10 recorded (19 January 2026)
CERT1	Certificate of Service	Proves wilful misrepresentation of Applicant's professional job title
EXIT4	"Smoke & Mirrors" Email (19 Jan 2026)	Contains irrelevant August 2025 data submitted to conceal the June 2025 UIF gap
UIF-GAP	uFiling Screenshot	Objective government record showing "No Information" for June 2025
GUN1	Inspector's 23:31 Email (15 April 2026)	Proof of Inspector Kutuka's error of law and unlawful summary closure
ESC1	Escalation Emails to DEL Leadership	Proves DEL senior officials were formally warned of the fraud but remained silent

H. RELIEF SOUGHT (PRAYERS)

The Applicant respectfully prays that this Honourable Court grant the following orders:

1. That the decision of the Respondent, through Principal Inspector Cebo Kutuka, dated 15 April 2026, summarily closing the investigation file, be reviewed and set aside in terms of section 8(1)(c)(ii)(aa) of PAJA as constituting unlawful administrative action.
2. That the Respondent be directed and compelled, within 5 days of the granting of this Order, to issue a Compliance Order directing the Employer to correct the UI-19 Declaration Form (Annexure "UI-19") by substituting Code 6 ("Resigned") with the correct statutory exit code reflecting constructive dismissal.
3. That the Respondent be directed and compelled to conduct an immediate audit of the Applicant's UIF contributions for June 2025 and to direct the Employer to remit all outstanding levies to the Fund, with written proof of compliance furnished to the Applicant within 5 days.

4. That the Respondent be directed and compelled to enforce section 42 of the BCEA by compelling the Employer to issue a corrected Certificate of Service accurately reflecting the Applicant's professional title and role.
5. That the Respondent pay the costs of this application on the scale as between attorney and client, by reason of the Respondent's gross negligence and wilful abdication of its statutory mandate.
6. That this Court grant such further and/or alternative relief as it deems just and equitable.

DEPONENT'S DECLARATION

I, the Deponent, declare that:

1. I know and understand the contents of this Founding Affidavit;
2. I have no objection to taking the prescribed oath;
3. I consider the oath to be binding on my conscience; and
4. The facts contained herein are true and correct.

DEPONENT

COMMISSIONER OF OATHS

Signed at _____ on this ____ day of _____ 2026.

APPLICANT'S ATTORNEYS / APPLICANT IN PERSON

Wilbur William Matthee,
Applicant in Person
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To: The Registrar of the High Court, Western Cape Division, Cape Town

And to: The State Attorney, on behalf of the Department of Employment and Labour

NOTE: *This application is brought in terms of Rule 53 of the Uniform Rules of Court, read with sections 6, 7, and 8 of the Promotion of Administrative Justice Act 3 of 2000, and section 172(1) of the Constitution of the Republic of South Africa, 1996.*